

18.0 DRUG PREVENTION PLAN

Section I. Introduction

A. Prohibited Drug Policy.

1. The Company has a long standing commitment to maintain the highest standards for employee safety and health and the use of controlled substances is contrary to these high standards.
2. This policy is also to bring the Company into compliance with federal law. The purpose of the drug prevention plan is to reduce accidents that result from the use of controlled substances, thereby reducing fatalities, injuries, and property damage.
3. The presence in the body of prohibited substances is not condoned.

B. Implementation of Drug prevention plan

1. Implementation of the drug prevention plan was effective on
2. The Company has implemented the Research and Special Programs Administration, Drug Testing Regulations as set forth in 49 CFR Part 199 and the Department of Transportation, Procedures for Transportation Workplace Drug Testing Programs as set forth in 49 CFR Part 40.

C. Background

1. The catalyst for the drug prevention plan is Title 49 Code of Federal Regulations (CFR) Part 199 which requires Company's subject to 49 CFR Parts 192, 193, and 195, and their contractors to test their employees for prohibited drugs under the following work-related conditions:
 - a. Pre-Employment
 - b. Post-Accident
 - c. Random
 - d. Reasonable Cause
 - e. Return-to-Duty

Title 49 CFR Part 40 specifies procedures which must be followed by the Company when conducting drug testing pursuant to regulations issued by agencies of the Department of Transportation (DOT).

NOTE: Specific Definitions: An Company must address the definition of "accident" under

§ 191.3 and/or § 195.50 and the definition of a "Covered Employee." The remaining definitions listed in Section D are optional, however, they may provide further clarification for employees on a number of common terms used throughout this drug prevention plan.

D. Definitions.

For purposes of this drug prevention plan the following definitions apply:

1. Accident means a reportable incident as follows:
 - (1) Death of any person.
 - (2) Bodily harm to any person resulting in one or more of the following:
 - (a) Loss of consciousness.
 - (b) Necessity to carry the person from the scene.

SAFETY AND HEALTH PROGRAM

- (c) Necessity for medical treatment.
 - (d) Disability which prevents the discharge of normal duties or the pursuit of normal activities beyond the day of the accident.
 - (3) Estimated property damage, including cost of clean-up and recovery, value of lost product and damage to the property of the Company or others, or both, exceeding
\$1,000.
 - (4) An event that results in an emergency shutdown of the Company.
 - (5) An event that is significant, in the judgment of the Company, even though it did not meet the criteria of paragraphs (1) or (2).
2. Blind Sample – a urine specimen submitted to a laboratory for quality control testing purposes, with a fictitious identifier, so that the laboratory cannot distinguish it from employee specimens, and which is spiked with known quantities of specific drugs or which is blank, containing no drugs.
 3. Chain-of-Custody – procedures to account for the integrity of each urine specimen by tracking its handling and storage from point of specimen collection to final disposition of the specimen. These procedures shall require that an appropriate drug testing custody form from a Department of Health and Human Services (DHHS) certified laboratory be used from time of collection to receipt by the laboratory.
 4. Collection Site – a designated clinic/facility where applicants or employees may present themselves for the purpose of providing a specimen of their urine to be analyzed for the presence of drugs.
 5. Collection Site Person – a person who instructs and assists applicants and employees through the specimen collection process.
 6. Company – an organization or commercial enterprise that uses this drug prevention plan.
 7. Confirmation Test – a second analytical procedure to identify the presence of a specific drug or metabolite which is independent of the initial test and which uses a different technique and chemical principle from that of the initial test in order to ensure reliability and accuracy. Gas chromatography/mass spectrometry (GC/MS) is the only authorized confirmation method for cocaine, marijuana, opiates, amphetamines, and phencyclidine (PCP).
 8. Covered employee – any person who performs work on Company property. Such person may be employed directly by the Company, or by a contractor engaged by the Company. As applied in the regulations, "employee" and "applicant for employment" have the same meaning for the purpose of these requirements.
 9. Covered Function (safety-sensitive function) – an operation, maintenance, or emergency-response function that is performed during Company business.
 10. Fail a Drug Test or Test Positive – the confirmation test result shows positive evidence of the presence under DOT procedures of a prohibited drug in the employee's or applicant's system.
 11. Initial Test – an immunoassay screen to eliminate "negative" urine specimens from further consideration.
 12. Pass a Drug Test or Test Negative – that initial testing or confirmation testing under DOT procedures does not show evidence of the presence of a prohibited drug in the employee's or applicant's system.
 13. Prohibited Drug – marijuana, cocaine, opiates, phencyclidine, and amphetamines.

SAFETY AND HEALTH PROGRAM

14. Refusal to Submit – refusal by an individual to provide a urine sample after receiving notice of the requirement to be tested in accordance with the Company's anti-drug program.

15. SAMHSA – Substance Abuse and Mental Health Services Administration, formerly National Institute on Drug Abuse (NIDA), was established by the Department of Health and Human Services in 1986 to regulate laboratories performing analytical tests (drug tests) on human body fluids for employment purposes in the public sector.

E. Company Responsibilities.

1. Drug Program Manager (DPM): Appendix A contains the name, address, and phone number of the responsible individual(s). The DPM or other Company designated individual shall be responsible for the preparation of a drug testing drug prevention plan which complies with requirements of the Department of Transportation regulations as set forth in 49

CFR Parts 199 and 40. The DPM shall be responsible for providing oversight and evaluation on the plan; providing guidance and counseling; reviewing of all discipline applied under this plan for consistency and conformance to human resources policies and procedures; scheduling random drug testing and return-to-duty testing; maintaining a locked file system on drug testing results; and overseeing the employee assistance program (EAP) as it is defined in 49 CFR Part

199.19. The Company shall ensure that all covered employees are aware of the provisions and coverage of the Company's drug prevention plan.

2. Supervisors: Company individuals responsible for observing the performance and behavior of employees; observation/documentation of events suggestive of reasonable cause; responsible for requests of second supervisor for substantiation and concurrence for reasonable cause testing, if applicable.

3. Employees: Each employee has the responsibility to be knowledgeable of the requirements of the Company's drug prevention plan and to fully comply with the provisions of the plan.

Section II. Drug Testing Requirements

A. Applicability.

1. Individuals Subject to Drug Testing: Any applicant/employee who would perform work and is employed by the Company. The person may be employed by the Company, be a contractor engaged by the Company, or be employed by such a contractor. Refer to Appendix B for specific employee titles subject to testing under this program.

2. Procedure for Notifying Employees: This anti-drug testing plan shall be included in the appropriate Company manual. Upon receipt of the Company's drug prevention plan, each manager shall post the plan in a prominent location that is readily accessible to all covered employees. All covered employees will be provided a complete copy of the drug prevention plan or a condensed/summarized version of the plan. This document must indicate where the entire plan may be obtained for review by an employee.

3. Substances for Which Testing Must Be Conducted: The Company shall test each employee who performs a function listed in Appendix B for evidence of the following substances:

Marijuana, Cocaine, Opiates, Phencyclidine, and Amphetamines

NOTE: Under § 199.7(a) Company's must provide procedures for notifying employees of the coverage and provisions of the plan. An Company may satisfy this requirement by either of the following methods: (1) Provide each employee with a copy of the Company drug prevention plan; (2) Provide a summarized version of the drug prevention plan; or, (3) Display the drug prevention plan or summarized version on an employee bulletin board or in an employee break/locker room. If the entire plan is not provided to employees, then the summarized version shall indicate where a complete copy of the Company's drug prevention plan is available for review by the employees.

SAFETY AND HEALTH PROGRAM

B. Drug Tests Required.

1. **Pre-Employment Testing.** A pre-employment drug test must be conducted before an individual is hired or contracted and when an individual is transferred/promoted from a non- covered to a covered position. This also applies to employees returning from a leave of absence who have not been participating in the drug prevention plan and subject to the random selection process. A negative test result is required prior to performing covered functions

2. Post-Accident Testing.

a. The Company shall promptly determine if the employee's performance contributed to the "accident" or cannot be completely discounted as a contributing factor to the accident. Each of these employees shall be drug tested as soon as possible but no later than 32 hours after the accident. The Company must take all reasonable steps to obtain a urine specimen from an employee after an accident, as defined above, but any injury should be treated first.

b. The following steps will be used to guide the supervisor to a satisfactory outcome in a post-accident situation.

(1) Verify the post-accident decision. Does the definition of accident in Section I apply to the current situation? Does the possibility exist that the employee's performance contributed to the accident or cannot be completely discounted as a contributing factor to the accident? Anonymous tips must be taken seriously, but should not be the sole reason to initiate a request for a specimen. If witnesses saw a specific event or behavior, ask them to describe what they saw. How far away were they? Before proceeding further, obtain approval from the division manager/department head or designee to proceed with post-accident testing.

(2) Isolate and inform the employee. Remove the employee from the covered position or work place. Explain that you have reason to believe their performance contributed to the accident or cannot be completely discounted as a contributing factor to the accident.

(3) Transport the employee. The potentially affected employee will not be allowed to proceed alone to or from the collection site. In addition to the safety concerns for the employee, accompanying the employee also assures that there is no opportunity en route to the collection site for the employee to ingest anything that could affect the test result or to acquire "clean" urine from another person.

(4) Document the events. Record the activity performed that supports the determination to conduct a post-accident test. This documentation of the employee's activity should be prepared and signed by the supervisor within 24 hours of the accident or before the results of the tests are released, whichever is earlier, if possible.

(5) Denial should be an expected reaction. If a person knows they will test positive, they may give many explanations and protestations, wanting to avoid drug testing. If they are not under the influence or affected by a prohibited drug, vehement denial also would be expected. Listen to the employee and carefully evaluate the employee's explanation. Remember, a request for urine specimen is not an accusation; it is merely a request for additional objective data. To the employee it may feel like an accusation; so it is important to stress that this is merely a request for additional data.

(6) Following collection. After returning from the collection site, the employee should not be allowed to perform covered functions pending the results of the drug test.

3. Random Testing.

a. The primary purposes of random testing are to deter prohibited drug use and to ensure a drug free workforce. DOT regulations require that covered employees shall be subject to drug testing on an unannounced and random basis. The Company shall conduct a number of tests equal to at least 50 percent of all covered employees each calendar year, spread reasonably over a 12-month period. The Company will conduct random selection and testing on a schedule. (Specify period - e.g., weekly, bi-monthly, monthly, quarterly).

SAFETY AND HEALTH PROGRAM

- b. The following is a discussion of the key aspects of the random testing selection process. (1) Employees remain in the random selection pool at all times, regardless of whether or not they have been previously selected for testing.
- (2) Employees shall be selected for testing by using a computer-based random number generator or equivalent random selection method that is matched with an employee's social security number or employee ID number.
- (3) The process will be unannounced as well as random. Employees will be notified that they have been selected for testing after they have reported for duty on the day of collection.
- (4) Employees will be selected for random testing based on the number of covered employees at the time and the necessary testing rate.
- (5) Specimen collection will be conducted on different days of the week throughout the annual cycle to prevent employees from matching their drug use patterns to the schedule for collection.
- c. Steps for random testing:
- (1) The DPM (or designee), on a pre-determined date, shall use the random selection procedures to compile a list of covered employees selected for random testing during that testing cycle.
- (2) The DPM (or designee) shall ensure that the list of social security numbers or employee identification numbers will identify the correct employees who are to be randomly tested during the testing cycle.
- (3) It is the intent of this plan to notify employees of their selection for random testing after they have reported for duty.
- (a) The list of employees to be tested will be provided to the appropriate division manager, department head, or supervisor.
- (b) The list of employees selected will be retained by the DPM (or designee) in a secure location.
- d. Notification of employees:
- (1) The appropriate manager/supervisor will notify the employee to be tested to report to the manager/supervisor's office at a specified time.
- (2) The employee will not be notified of the test until after reporting for duty.
- (3) Employees shall report immediately to the collection site or to the collection site within 30 minutes, plus travel time, once notified by the appropriate Company official.
4. Reasonable Cause Testing. Reasonable cause testing is designed to provide management with a tool (in conjunction with supervisor training on the signs and symptoms of drug use) to identify drug affected employees who may pose a danger to themselves and others in their job performance. Employees may be at work in a condition that raises concern regarding their safety or productivity. Supervisors must then make a decision as to whether there is reasonable cause to believe an employee is using or has used a prohibited drug.
- a. The decision to test must be based on a reasonable and articulate belief that the employee is using a prohibited drug on the basis of specific, contemporaneous physical, behavioral, or performance indicators of probable drug use. At least two of the employee's supervisors, one of whom is trained in detection of the possible symptoms of drug use, shall substantiate and concur in the decision to test an employee. The concurrence by both supervisors can be accomplished by phone, by discussions a few hours later, or by having another supervisor travel to the job site, if only one supervisor is available at that particular job site.

SAFETY AND HEALTH PROGRAM

NOTE: For small companies with 50 or fewer employees subject to testing only one supervisor of the employee trained in detecting possible drug use symptoms shall substantiate the decision to test.

b. In making a determination of reasonable cause, the factors to be considered include, but are not limited to the following:

- (1) Adequately documented pattern of unsatisfactory work performance, for which no apparent non-impairment related reason exists, or a change in an employee's prior pattern of work performance, especially where there is some evidence of drug related behavior on or off the work site.
- (2) Physical signs and symptoms consistent with substance abuse.
- (3) Evidence of illegal substance use, possession, sale, or delivery while on duty.
- (4) Occurrence of a serious or potentially serious accident that may have been caused by human error, or flagrant violations of established safety, security, or other operational procedures.

NOTE: This information is presented as guidance in determining whether reasonable cause exists to require an employee to submit to a drug test.

c. The following steps will be used to guide the supervisor to a satisfactory outcome in a reasonable cause situation.

- (1) Verify the reasonable cause decision. Anonymous tips must be taken seriously but should not be the sole reason to initiate a request for a specimen. Hearsay is not an acceptable basis for reasonable cause referral. If witnesses saw a specific event or behavior, ask them to describe what they saw. How far away were they? How long did they observe the person? What, if anything, caused them to believe it was substance abuse related? On what basis did they reach their conclusion? Before proceeding further, obtain approval from the division manager/department head or designee to proceed with reasonable cause testing.
- (2) Isolate and inform the employee. Remove the employee from the work location. Explain that there is reasonable cause to believe the employee's performance is being affected by some substance. Ask the employee to explain the suspected behavior and to describe the events that took place from their perspective. Ask if there is any medication or physical condition that would explain the behavior. A persuasive explanation may or may not deter you from asking for a urine sample. If there is still a reasonable belief that drugs are a factor in the situation/incident, a request for testing should be made; if no reasonable belief is determined then no request for testing should not be made. If the decision to test is made, inform the employee that they are being requested to accompany the appropriate official to the specimen collection site to provide a urine specimen. Inform the employee of the consequences of refusal to submit to testing.
- (3) Review your findings. During the conversation, observe physical and mental symptoms. Be sure to document any characteristics that either support or contradict initial information. In all cases, a reasonable cause decision must be made by two of the employee's supervisors. This creates greater objectivity, provides additional observation, and generally strengthens the defensibility of the reasonable cause determination.
- (4) Transport the employee. The potentially affected employee should not be allowed to proceed alone to or from the collection site. In addition to the safety concerns for the employee, accompanying the employee also assures that there is no opportunity en route to the collection site for the employee to ingest anything that could affect the test result or to acquire "clean" urine from another person.
- (5) Document the events. Record the behavioral signs and symptoms that support the determination to conduct a reasonable cause test. This documentation of the employee's conduct should be prepared and signed by the witnesses within 24 hours of the observed behavior or before the results of the tests are released, whichever is earlier.

SAFETY AND HEALTH PROGRAM

(6) Denial should be an expected reaction. If a person knows they will test positive, they may give many explanations and protestations, wanting to avoid drug testing. If they are not under the influence or affected by a prohibited drug, vehement denial also would be expected. Listen to the employee and carefully evaluate the employee's explanation. Remember, a request to provide a urine specimen is not an accusation; it is merely a request for additional objective data. To the employee it may feel like an accusation; so it is important to stress that this is merely a request for additional data.

(7) Following collection. After returning from the collection site, the employee shall not perform duties pending the receipt of the drug test results. The employee should make arrangements to be transported home. The employee should be instructed not to drive any motor vehicle due to the reasonable cause belief that they may be under the influence of a drug.

If the employee insists on driving, the proper local enforcement authority should be notified that an employee who we believe may be under the influence of a drug is leaving the Company premises driving a motor vehicle.

5. Return-to-Duty Testing. An employee who refuses to take or fails a drug test may not return to duty until the employee passes a drug test and the Medical Review Officer (MRO) and the Company have determined that the employee may return to duty. An employee who returns to duty shall be subject to a reasonable program of follow-up drug testing, without prior notice, for up to 60 months after his or her return to duty.

NOTE: Return-to-Duty testing is not an option under this plan if the Company terminates an employee who has tested positive or refuses to test. A statement to this effect would appear under return-to-duty testing section of the plan.

Section III. Use of Employee who Fails/Refuses a Drug Test

A. General. Compliance with this drug testing plan is a condition of employment. Refusal to take a required drug test or failure of a drug test shall result in removal from performing covered functions. Additional disciplinary action up to and including termination may result.

B. Prohibitions On Use. The Company shall not use, in a function covered by Part 199, anyone who:

1. Fails a drug test as verified by the MRO, or
2. Refuses to take a drug test required by this plan.

C. Options For Return-to-Duty. An employee will be given an opportunity to retain his or her employment, provided they first:

1. Have been recommended by the MRO for return to duty,
2. Pass a DOT drug test, and
3. Not failed a drug test required by Part 199 after returning to duty.
4. Enter into a Company approved evaluation/rehabilitation program and successfully completes the program.

NOTE: Rehabilitation is not mandated by DOT regulations and paragraph 4 is based on Company policy and procedures.

Section IV. Specimen Collection Requirements

A. Scope.

1. The procedures contained herein and in Appendix C shall be complied with by the designated collection sites and all covered employees who report for drug testing. The Company will ensure that collection sites utilized by its employees are aware of their responsibilities with regard to the specimen collection process. The collection site shall post or have readily available instructions which explain the specimen collection process. If information on collector, donor, and Company

SAFETY AND HEALTH PROGRAM

representatives responsibilities are provided under separate cover by the Company or the collection site, then the above requirement is not required.

2. The procedures address the requirements contained in § 40.25. B. General.

1. The collection site shall have all necessary personnel, materials, equipment, facilities, and supervision to provide for the collection, security, temporary storage, and shipping or transportation of urine specimens to a certified drug testing laboratory designated by the Company. An independent medical facility may also be utilized as a collection site provided the other applicable requirements of Appendix C are met.

2. A designated collection site shall be any suitable location where a specimen can be collected under conditions set forth in Appendix C, including a properly equipped mobile facility. A designated collection site shall have an enclosure within which private urination can occur, a toilet for completion of urination, and a suitable clean surface for writing. The site must also have a source of water for washing hands, which if practicable, should be external to the enclosure where urination occurs

3. The Company shall ensure that all collection site personnel have completed training on specimen collection procedures or are qualified as a licensed medical professional. If non-medical collection sites are utilized, then the Company shall ensure that appropriate training requirements are documented.

4. The direct supervisor of a covered employee shall not serve as a collector in conducting any required drug test unless it is impracticable.

5. Detailed Specimen Collection Procedures are outlined in Appendix C. These collection procedures are to be provided to the medical collection site personnel.

6. A copy of the standard written instructions setting forth the donor's or employee representative's responsibilities during the specimen collection must be provided prior to the test being conducted.

Section V. Drug Testing Laboratory

A. NIDA Laboratory.

1. The Company shall use a drug testing laboratory certified under DHHS Mandatory Guidelines for Federal Workplace Drug Testing Programs; 53 FR 11970, April 11, 1988 and subsequent amendments.

2. The laboratory shall provide services in accordance with Part 40 and Part 199. The name and address of each NIDA laboratory used by the Company is contained in Appendix A.

3. The laboratory shall permit inspections by the Company, the RSPA Administrator, or if the Company is subject to the jurisdiction of a state agency, a representative of the state agency.

B. Laboratory Procedures. These procedures are addressed in Appendix D.

Section VI. Blind Performance Test Procedures

A. General.

1. The Company shall use blind testing quality control procedures as provided in this section.

2. The Company shall submit three blind performance test specimens for each 100 employee specimens it submits, up to a maximum of 100 blind performance test specimens submitted per quarter. RSPA may increase this per quarter maximum number of samples if doing so is necessary to ensure adequate quality control of employers or consortiums with very large numbers of employees.

SAFETY AND HEALTH PROGRAM

B. Covered Employees.

1. Companies with fewer than 2,000 covered employees may submit blind performance test specimens as provided in the above paragraph. Such companies may also submit only blank samples or may submit two separately labeled portions of a specimen from the same non-covered employee.

2. For companies with 2,000 or more covered employees, approximately 80 percent of the blind performance test samples shall be blank (i.e., containing no drugs or otherwise as approved by DOT) and the remaining samples shall be positive for one or more drugs per sample in a distribution such that all the drugs to be tested are included in approximately equal frequencies of challenge. The positive samples shall be spiked only with those drugs for which the employer is testing. This paragraph shall not be construed to prohibit spiking of other (potentially interfering) compounds, as technically appropriate, in order to verify the specificity of a particular assay.

NOTES:

(1) The Company shall determine whether they must comply with paragraph 1 or 2 above with regard to the total number of DOT covered employees.

(2) Consortiums shall be responsible for the submission of blind samples on behalf of their members. The blind sampling rate shall apply to the total number of samples submitted by the consortium for all DOT covered employees.

C. Investigations and False Positive.

1. RSPA shall investigate, or shall refer to DHHS for investigation, any unsatisfactory performance testing result and, based on this investigation, the laboratory shall take action to correct the cause of the unsatisfactory performance test result. A record shall be made of the investigative findings and the corrective action taken by the laboratory, and that record shall be dated and signed by the individual responsible for the day-to-day management and operation of the drug testing laboratory. RSPA shall send the document to the Company as a report of the unsatisfactory performance testing incident. RSPA shall ensure notification of the finding to DHHS.

2. Should a false positive error occur on a blind performance test specimen and the error is determined to be an administrative error (clerical, sample mix-up, etc.), the Company shall promptly notify RSPA. RSPA and the Company shall require the laboratory to take corrective action to minimize the occurrence of the particular error in the future, and, if there is reason to believe the error could have been systemic, RSPA may also require review and reanalysis of previously run specimens.

3. Should a false positive error occur on a blind performance test specimen and the error is determined to be a technical or methodological error, the Company shall instruct the laboratory to submit all quality control data from the batch of specimens which included the false positive specimen to RSPA. In addition, the laboratory shall retest all specimens analyzed positive for that drug or metabolite from the time of final resolution of the error back to the time of the last satisfactory performance test cycle. This retesting shall be documented by a statement signed by the individual responsible for day-to-day management of the laboratory's urine drug testing. RSPA may require an on-site review of the laboratory which may be conducted unannounced during any hours of operation of the laboratory. DHHS has the option of revoking or suspending the laboratory's certification or recommending that no further action be taken if the case is one of less serious error in which corrective action has already been taken, thus reasonably assuring that the error will not occur again.

Section VII. Review of Drug Testing Results

A. General.

1. The Company shall have on staff or contract for the services of an MRO. The MRO shall be a licensed physician with knowledge of drug abuse disorders. The MRO shall review all negative and positive drug test results and interview individuals

SAFETY AND HEALTH PROGRAM

tested positive to verify the laboratory report before the Company is notified. The review of a negative test may be an administrative process to ensure the chain-of-custody procedures were intact. The MRO shall also recommend to the Company whether and when an employee who refused to take or did not pass a drug test may return to work and schedule follow-up unannounced drug testing for a period of 60 months.

2. The MRO has contracted with the Company to provide the services of MRO for this drug testing policy in accordance with the requirements of §§ 40.33 and 199.15. A listing of the Company MRO(s) which includes their name(s) and address(es) is contained in Appendix A.

B. Reporting and Review of Results.

1. The MRO shall review confirmed positive results. An essential part of the drug testing program is the final review of confirmed positive results from the laboratory. A positive test result does not automatically identify an employee/applicant as having used drugs in violation of a DOT regulation. An individual with a detailed knowledge of possible alternate medical explanations is essential to the review of results. This review shall be performed by the MRO prior to the transmission of results to Company administrative officials. The MRO review shall include review of the chain-of-custody to ensure that it is complete and sufficient on its face

2. The duties of the MRO with respect to negative results are purely administrative.

C. Qualifications and Responsibilities.

1. The MRO shall be a licensed physician with knowledge of substance abuse disorders and may be an employee of the Company or a private physician retained for this purpose. The MRO shall not be an employee of the laboratory conducting the drug test unless the laboratory establishes a clear separation of functions to prevent any appearance of a conflict of interest including assuring that the MRO has no responsibility for, and is not supervised by or the supervisor of, any persons who have responsibility for the drug testing or quality control operations of the laboratory.

2. The role of the MRO is to review and interpret confirmed positive test results obtained through the Company testing program. In carrying out this responsibility, the MRO shall examine alternate medical explanations for any positive test result. This action could include conducting a medical interview with the individual and review of the individual's medical history, or review of any other relevant biomedical factors. The MRO shall review all medical records made available by the tested individual when a confirmed positive test could have resulted from legally prescribed medication. The MRO shall not, however, consider the results of urine samples that are not obtained or processed in accordance with DOT regulations.

3. The MRO may require the original specimen be reanalyzed to determine the accuracy of the test result. The MRO may verify that the laboratory report and assessment are correct.

D. Positive Test Results.

1. Prior to making a final decision to verify a positive test result, the MRO shall give the individual an opportunity to discuss the test result with him/her.

2. The MRO shall contact the individual directly, on a confidential basis, to determine whether the employee wishes to discuss the test result. A staff person under the MRO's supervision may make the initial contact, and a medically licensed or certified staff person may gather information from the employee. Except as provided in paragraph 5 of this section, the MRO shall talk directly with the employee before verifying a test as positive.

3. If, after making all reasonable efforts and documenting them, the MRO is unable to reach the individual directly, the MRO shall contact a designated management official who shall direct the individual to contact the MRO as soon as possible. If it becomes necessary to reach the individual through the designated management official, such official shall employ procedures that ensure, to the maximum extent practicable, that the requirement of the employee to contact the MRO is held in confidence.

SAFETY AND HEALTH PROGRAM

4. If, after making all reasonable efforts, the designated management official is unable to contact the employee, the Company may place the employee on temporary medically unqualified status or medical leave.

The MRO may verify a test as positive without having communicated directly with the employee about the test in three circumstances:

- a. The employee expressly declines the opportunity to discuss the test;
- b. The designated Company representative has successfully made and documented a contact with the employee and instructed the employee to contact the MRO (See paragraphs (D)(3) and (4) of this section), and more than five days have passed since the date the employee was successfully contacted by the designated Company representative; or
- c. Other circumstances provided for in RSPA's drug testing regulations.

6. If a test is verified positive under the circumstances specified in paragraph 5 of this section, the employee may present to the MRO information documenting that serious illness, injury, or other circumstances unavoidably prevented the employee from timely contacting the MRO. The MRO, on the basis of such information, may reopen the verification allowing the employee to present information concerning a legitimate explanation for the confirmed positive test. If the MRO concludes that there is a legitimate explanation, the MRO declares the test to be negative.

7. Following verification of a positive test result, the MRO shall, as provided in the Company's policy, refer the case to the DPM (or designee) for action.

E. Verification for Opiates; Review for Prescription Medication.

1. Before the MRO verifies a confirmed positive result for opiates, the MRO shall determine that there is clinical evidence—in addition to the urine test—of unauthorized use of any opium, opiate, or opium derivative

(e.g., morphine/codeine).

2. This requirement does not apply if the Company's GC/MS confirmation testing for opiates confirms the presence of 6-monoacetylmorphine.

F. Reconfirmation Analysis Authorization.

1. Should any question arise as to the accuracy or validity of a positive test result, only the MRO is authorized to order a reconfirmation of the original sample and such retests are authorized only at laboratories certified by DHHS.

2. The MRO shall authorize a reconfirmation of the original sample if requested in writing by the employee within 60 days of the employee having received actual notice of the positive test.

3. If the retest is negative, the MRO shall cancel the test.

- G. Results Consistent with Legal Drug Use. If the MRO determines there is a legitimate medical explanation for the positive test result, the MRO shall report the test result to the Company as negative.

H. Results Scientifically Insufficient.

1. The MRO, based on review of inspection reports, quality control data, multiple samples, and other pertinent results, may determine that the result is scientifically insufficient for further action and declare the test specimen negative. In this situation the MRO may request reanalysis of the original sample before making this decision. The MRO may request that reanalysis be performed by the same laboratory or, as provided in paragraph F above, that an aliquot of the original specimen be sent for reanalysis to an alternate laboratory which is certified in accordance with the DHHS guidelines.

SAFETY AND HEALTH PROGRAM

2. The laboratory shall assist in this review process as requested by the MRO by making available the individual responsible for day-to-day management of the urine drug testing laboratory or other employee who is a forensic toxicologist or who has equivalent forensic experience in urine drug testing, to provide specific consultation as required by the Company. The Company shall include in any required annual report to RSPA a summary of any negative findings based on scientific insufficiency but shall not include any personal identifying information in such reports.

I. Disclosure of Information.

1. Except as provided in this paragraph, the MRO shall not disclose to any third party medical information provided by the individual to the MRO as a part of the testing verification process.

2. The MRO may disclose such information to the Company, DOT or other Federal safety agency, or a physician responsible for determining the medical qualification of the employee under the appropriate DOT regulation, as applicable, only if—

a. An applicable DOT regulation permits or requires such disclosure;

b. In the MRO's reasonable medical judgment, the information could result in the employee being determined to be medically unqualified under an applicable DOT rule; or

c. In the MRO's reasonable medical judgment, in a situation in which there is no DOT rule establishing physical qualification standards applicable to the employee, the information indicates that continued performance by the employee of his or her covered function could pose a significant safety risk.

3. Before obtaining medical information from the employee as part of the verification process, the MRO shall inform the employee that information may be disclosed to third parties as provided in this paragraph and the identity of any parties to whom information may be disclosed.

Section VIII. Retention of Samples

A. General. Samples that yield positive results on confirmation must be retained by the laboratory in properly secured, long-term, frozen storage for at least 365 days.

B. Retention Period.

1. Within this 365 day period, the employee or designated representative, RSPA or other state agencies with jurisdiction, or the Company may request in writing that the sample be retained for an additional period.

2. If the laboratory does not receive the request to retain the sample within the 365 day period, the sample may be discarded.

Section IX. Retesting of Samples

A. General. An employee/applicant may request in writing to the MRO a retest of the sample within 60 days of notification of a positive test result from the MRO.

B. Retest Provisions. The employee may specify that the specimen be retested by the original laboratory or sent to another certified laboratory. The employee may be required to pay in advance for the cost of the shipment and reanalysis of the sample. The employee will be reimbursed for the costs incurred in the reanalysis if the retest of the specimen is negative. If the employee requests a retest at a second laboratory, then the original laboratory must follow the approved custody and control procedures in transferring a portion of the specimen.

C. Detection Levels. Because some analytes deteriorate or are lost during freezing and/or storage, quantitation for a retest is not subject to a specific cutoff requirement but must provide data sufficient to confirm the presence of the drug or metabolite.



SAFETY AND HEALTH PROGRAM

Section X. Employee Assistance Program (EAP)

A. Scope of Program.

The EAP will provide education and training on drug use to all employees. The education shall include:

1. Informational material displayed on bulletin boards, employee break rooms, locker rooms, etc., and distributed to employees.
2. A community service hot-line telephone number for employee assistance displayed on bulletin boards and distributed to employees, and
3. Distribution of the Company's policy regarding the use of prohibited drugs to all new employees. The policy shall be displayed in prominent places throughout the Company (i.e., employee bulletin board, break room, locker rooms).

B. Supervisor Training.

1. Supervisory personnel responsible for those employees covered under Part 199 will receive training under the drug prevention plan. The training shall include at least one 60- minute period of training on the specific, contemporaneous physical, behavioral, and performance indicators of probable drug use. This training shall be for supervisors who may determine whether an employee must be drug tested for reasonable cause.

Section XI. Recordkeeping Procedures

A. General.

1. The DPM (or designee) shall maintain a locked file system which will contain drug test results. This file shall be maintained as Confidential. Employee files shall be handled on strict "need to know" basis.
2. Drug tests results shall not be included in personnel files. Information regarding an individual's drug testing result or rehabilitation may be released only upon written consent of the individual, except:

- a. Such information must be released regardless of consent to RSPA or other government agency as a part of an accident investigation;
- b. Such information may be disclosed regardless of consent in a lawsuit, grievance, or other proceeding initiated by or on behalf of the individual and arising from a verified positive drug test.

- B. Statistical Data. Statistical data related to drug testing and rehabilitation that is non name-specified and training records may be released to RSPA or other governmental agency upon request.

C. Record Retention.

The records that must be maintained are:

1. Records that demonstrate the collection process conforms to § 40.25 shall be retained for a 3-year period.
2. Employee drug test results that show positive and test type (pre-employment test, random test, post-accident test, or post-rehabilitation test), and records that demonstrate rehabilitation (including the MRO's determination). These records shall be retained for a 5-year period and must include the following information:
 - a. Job classification and functions of employee.
 - b. Prohibited drug(s) used.
 - c. Disposition of employee (i.e., rehab, suspension, termination, etc.)

SAFETY AND HEALTH PROGRAM

3. Employee drug tests that demonstrate negative results shall be retained for a period of 1 year.
4. A record indicating the total number of employees tested and the results of tests separated into categories shall be retained for a 5-year period.
5. Training records confirming that supervisors and employees have been trained as required under § 199.19, and copies of training material used shall be retained for a 3-year period.

Section XII. Contractor Monitoring

- A. General. The Company shall include a clause in contracts that drug testing, education and training shall be addressed by the contractor.
- B. Records and Access. Contractors shall retain copies of appropriate records required by Part 199 and Part 40. The records and access to the contractor's property shall be readily accessible for inspection by the Company, RSPA, and representatives of those state agencies under which jurisdiction the Company operates.
- C. Monitoring Procedures. Confirmation of contractor compliance - see Appendix E for Contractor Monitoring Procedures.
- D. Contractor Coverage. The Company can, as an alternative to the above guidance, provide coverage for the contractor's employees by including them in the Company's drug testing program and random pool for the duration of the contract.

Specimen Collection Procedures

- A. Scope.
 1. The drug testing custody and control form is to be used as a permanent record on which identifying data on the employee and on the specimen collection and transfer process are retained. The drug testing plan requires testing for marijuana, cocaine, opiates, amphetamines, and phencyclidine.
 2. Urine specimens collected under this plan may be used only to test for controlled substances designated or approved for testing as described in this appendix and shall not be used to conduct any other analysis or test.
 3. This plan does not prohibit procedures reasonably incident to analysis of the specimen for controlled substances (e.g., determination of pH or tests for specific gravity, creatinine concentration, or presence of adulterants).
- B. Procedures.
 1. The collection site person shall utilize the drug testing chain-of-custody (COC) form provided by Company; this form must address the requirements as contained in § 40.23. The COC form must comply with the provisions as contained in 49 CFR Part 40 with regard to the information that must be contained on the form.
 2. The drug testing custody and control form may include such additional information as may be required for billing or other legitimate purposes necessary to the collection, provided that personal identifying information on the donor (other than the social security number or employee identification number) may not be provided to the laboratory. Donor medical information may appear only on the copy provided to the donor.

NOTE: The new custody and control form is available and therefore, the specific instructions on how to complete the form have been deleted.

SAFETY AND HEALTH PROGRAM

C. Security.

1. The purpose of this paragraph is to prevent unauthorized access which could compromise the integrity of the collection process of the specimen.
2. The designated collection site is to be secure. If a collection site facility is dedicated solely to urine collection, it shall be secure at all times. If a facility cannot be dedicated solely to drug testing, the portion of the facility used for testing shall be secure during drug testing.
3. A facility normally used for other purposes, such as a public rest room or hospital examining room, may be secured by visual inspection to ensure other persons are not present and undetected access (e.g., through a rear door not in the view of the collection site person) is not possible. Security during collection may be maintained by effective restriction of access to collection materials and specimens. In the case of a public rest room, the facility must be posted against access during the entire collection procedure to avoid embarrassment to the employee or distraction of the collection site person.
4. If it is impractical to maintain continuous physical security of a collection site from the time the specimen is presented until the sealed mailer is transferred for shipment, the following minimum procedures shall apply:
 - a. The specimen shall remain under the direct control of the collection site person from delivery to its being sealed in the mailer.
 - b. The mailer shall be immediately mailed, maintained in secure storage, or remain until mailed under the personal control of the collection site person.

D. Chain-of-Custody

1. The chain-of-custody block of the drug testing custody and control form shall be properly executed by authorized collection site personnel upon receipt of specimens.
2. Handling the transportation of urine specimens from one authorized individual or place to another shall always be accomplished through chain-of-custody procedures. Every effort shall be made to minimize the number of persons handling specimens.

E. Access to Authorized Personnel Only.

1. No unauthorized personnel shall be permitted in any part of the designated collection site when urine specimens are collected or stored. Only the collection site person may handle specimens prior to their securement in the mailing container or monitor or observe a specimen collection (under the conditions specified in this section).
2. To promote security of specimens, avoid distraction of the collection site person, and ensure against any confusion in the identification of specimens, the collection site person shall have only one donor under supervision at anytime.
3. For this purpose, a collection procedure is complete when the urine bottle has been sealed and initialed, the drug testing custody and control form has been executed, and the employee has departed the site (or, in the case of an employee who was unable to provide a complete specimen, has entered a waiting area).

SAFETY AND HEALTH PROGRAM

F. Privacy.

1. Procedures for collecting urine specimens shall allow individual privacy unless there is a reason to believe that a particular individual may alter or substitute the specimen to be provided, as further described in this paragraph.
2. For purposes of this procedure, the following circumstances are the exclusive grounds constituting a reason to believe that the individual may alter or substitute the specimen
 - a. The employee has presented a urine specimen that falls outside the normal temperature range (32° – 38°C/90°– 100°F), and
 - (1) the employee declines to provide a measurement of oral body temperature, as provided in paragraph G.14. of this section; or
 - (2) oral body temperature varies by more than 1°C/1.8°F from the temperature of the specimen.
 - b. The last urine specimen provided by the employee (i.e., on a previous occasion) was determined by the laboratory to have a specific gravity of less than 1.003 and a creatinine concentration below .2g/L.
 - c. The collection site person observes conduct clearly and unequivocally indicating an attempt to substitute or adulterate the sample (e.g., substitute urine in plain view, blue dye in specimen presented); or
 - d. The employee has previously been determined to have used a controlled substance without medical authorization and the particular test was being conducted under a DOT regulation providing for follow-up testing upon or after return to service.
3. A higher-level supervisor of the collection site person, or a designated employer representative, shall review and concur in advance with any decision by a collection site person to obtain a specimen under the direct observation of a same gender collection site person based upon the circumstances described in paragraph 2 above.

G. Integrity and Identity of Specimen. The collection site person shall take precautions to ensure that a urine specimen is not adulterated or diluted during the collection procedure and that information on the urine bottle and on the urine custody and control form can identify the individual from whom the specimen was collected. The following minimum precautions shall be taken to ensure that unadulterated specimens are obtained and correctly identified:

1. To deter the dilution of specimens at the collection site, toilet bluing agents shall be placed in toilet tanks wherever possible, so that reservoir of water in the toilet bowl always remains blue. Where practicable, there shall be no other source of water (e.g., no shower or sink) in the enclosure where urination occurs. If there is another source of water in the enclosure, it shall be effectively secured or monitored to ensure it is not used as a source for diluting the specimen.
2. When an individual arrives at the collection site, the collection site person shall ensure that the individual is positively identified as the employee selected for testing (e.g., through presentation of photo identification or identification by the employer's representative). If the individual's identity cannot be established, the collection site person shall not proceed with the collection. If the employee requests, the collection site person shall show proper identification to the employee.
3. If the individual fails to arrive at the assigned time, the collection site person shall contact the appropriate authority to obtain guidance on the action to be taken.
4. The collection site person shall ask the individual to remove any unnecessary outer garments such as a coat or jacket that might conceal items or substances that could be used to tamper with or adulterate the individual's urine specimen. The collection site person shall ensure that all personal belongings such as a purse or briefcase remain with the outer garments. The individual may retain his or her wallet. If the employee requests it, the collection site person shall provide the employee a receipt for any personal belongings.

SAFETY AND HEALTH PROGRAM

5. The individual shall be instructed to wash and dry his or her hands prior to urination.
 6. After washing hands, the individual shall remain in the presence of the collection site person and shall not have access to any water fountain, faucet, soap dispenser, cleaning agent, or any other materials which could be used to adulterate the specimen.
 7. The individual may provide their specimen in the privacy of a stall or otherwise partitioned area that allows for individual privacy. The collection site person shall provide the individual with a clean specimen bottle or collection container, if applicable, that is securely wrapped for this purpose.
 8. The collection site person shall note any unusual behavior or appearance on the urine custody and control form.
 9. In the exceptional event that an employer-designated collection site is not accessible and there is an immediate requirement for specimen collection (e.g., circumstances require a post-accident test), a public rest room may be used according to the following procedures: A collection site person of the same gender as the individual shall accompany the individual into the public rest room which shall be made secure during the collection procedure. If possible, a toilet bluing agent shall be placed in the bowl and any accessible toilet tank. The collection site person shall remain in the rest room, but outside the stall, until the specimen is collected. If no bluing agent is available to deter specimen dilution, the collection site person shall instruct the individual not to flush the toilet until the specimen is delivered to the collection site person. After the collection site person has possession of the specimen, the individual will be instructed to flush the toilet and to participate with the collection site person in completing the chain-of-custody procedures.
 10. If the Company is using the single collection method then the following procedures shall be used:
 - a. The collector may choose to direct the employee to urinate either directly into a specimen bottle or into a separate collection container.
 - b. If a separate collection container is used, the collection site person shall pour at least 30 ml of the urine from the collection container into the specimen bottle in the presence of the employee.
 11. Collection Methodology.
 - a. In either collection methodology, upon receiving the specimen from the individual, the collection site person shall determine if it has at least 30 ml of urine for the primary or single specimen bottle and, where the split specimen collection method is used, an additional 15 ml of urine for the split specimen bottle. If the individual is unable to provide such a quantity of urine, the collection site person shall instruct the individual to drink not more than 24 ounces of fluids and, after a period of up to two hours, again attempt to provide a complete sample using a fresh collection container. The original insufficient specimen shall be discarded. If the employee is still unable to provide an adequate specimen, the insufficient specimen shall be discarded, testing discontinued, and the employer is notified. The MRO shall refer the individual for a medical evaluation to develop pertinent information concerning whether the individual's inability to provide a specimen is genuine or constitutes a refusal to test. Upon completion of the examination, the MRO shall report his or her conclusions to the employer in writing.
 - b. In pre-employment testing, if the Company does not wish to hire the individual, the MRO is not required to make such a referral. Upon completion of the examination, the MRO shall report his her conclusion to the Company in writing.
- NOTE: The procedure below may be omitted if the Company does not conduct split sample testing. Since split samples are not mandated by RSPA, a Company implementing these procedures does so based on their Company policy, however, the collection procedures shall be conducted in accordance with the requirements of 49 CFR Part 40.
12. Employers using the split sample method of collection shall follow the procedures set forth below:
 - a. The donor shall urinate into a collection container or specimen bottle capable of holding at least 60 ml.

SAFETY AND HEALTH PROGRAM

- b. If a collection container is used, the collection site person, in the presence of the donor, pours the urine into two specimen bottles. Thirty (30) ml shall be poured into one bottle, to be used as the primary specimen. At least 15 ml shall be poured into the other bottle, to be used as the split specimen.
 - c. If a single specimen bottle is included as a collection container, the collection site person shall pour 30 ml of urine from the specimen bottle into a second specimen bottle (to be used as the primary specimen) and retain the remainder (at least 15 ml) in the collection bottle (to be used as the split specimen).
 - d. Both bottles shall be shipped in a single shipping container, together with copies 1, 2, and the split specimen copy of the chain-of-custody form, to the laboratory.
 - e. If the test result of the primary specimen is positive, the employee may request that the MRO direct that the split specimen be tested in a different DHHS-certified laboratory for presence of the drug(s) for which a positive result was obtained in the test of the primary specimen. The MRO shall honor such a request if it is made within 72 hours of the employee having been notified of a verified positive test result.
 - f. When the MRO informs the laboratory in writing that the employee has requested a test of the split specimen, the laboratory shall forward, to a different DHHS- approved laboratory, the split specimen bottle, with seal intact, a copy of the MRO request, and the split specimen copy of the chain-of-custody form with appropriate chain-of-custody entries.
 - g. The result of the test of the split specimen is transmitted by the second laboratory to the MRO.
 - h. Action required by DOT agency regulations as the result of a positive drug test (e.g., removal from performing a safety-sensitive function) is not stayed pending the result of the test of the split specimen.
 - i. If the result of the test of the split specimen fails to reconfirm the presence of the drug(s) or drug metabolite(s) found in the primary specimen, the MRO shall cancel the test, and report the cancellation and the reasons for it to the DOT, the employer, and the employee.
13. After the specimen has been provided and submitted to the collection site person, the individual shall be allowed to wash his or her hands.
14. Immediately after the specimen is collected, the collection site person shall measure the temperature of the specimen. The temperature measuring device used must accurately reflect the temperature of the specimen and not contaminate the specimen. The time from urination to temperature measure is critical and in no case shall exceed 4 minutes.
15. A specimen temperature outside the range of 32°C – 38°C/90°F – 100°F, constitutes a reason to believe that the individual has altered or substituted the specimen (See Section F.2.a.). In such cases, the individual supplying the specimen may volunteer to have their temperature taken to provide evidence to counter the reason to believe the individual may have altered or substituted the specimen.
16. Immediately after the specimen is collected, the collection site person shall also inspect the specimen to determine its color and look for any signs of contaminants. Any unusual findings shall be noted on the urine custody and control form.
17. All specimens suspected of being adulterated shall be forwarded to the laboratory for testing.
18. Whenever there is reason to believe that a particular individual has altered or substituted the specimen as described in Section F.2.a. and c., a second specimen shall be obtained as soon as possible under the direct observation of a same gender collection site person.
19. Both the individual being tested and the collection site person shall keep the specimen in view at all times prior to its being sealed and labeled. As provided below, the specimen shall be sealed by placement of a tamper-proof seal over the bottle

SAFETY AND HEALTH PROGRAM

cap and down the sides of the bottle and labeled in the presence of the employee. If the specimen is transferred to a second bottle, the collection site person shall request the individual to observe the transfer of the specimen and the placement of the tamper-proof seal over the bottle cap and down the sides of the bottle.

20. The collection site person and the employee shall be present at the same time during procedures outlined in items 21 through 24 of this section.

21. The collection site person shall place securely on the bottle an identification label which contains the date, the individual's specimen number, and any other identifying information provided or required by the employer. If separate from the label, the tamper-proof seal shall also be applied.

22. The individual shall initial the identification label on the specimen bottle for the purpose of certifying that it is the specimen collection from the donor.

23. The collection site person shall enter on the drug testing custody and control form all information identifying the specimen. The collection site person shall sign the drug testing custody and control form certifying that the collection was accomplished according to the applicable Federal requirements.

24. The individual shall be asked to read and sign a statement on the drug testing custody and control form that the specimen collected from him/her is in fact that specimen he/she provided.

25. The collection site person shall complete the chain-of-custody portion of the drug testing custody and control form to indicate receipt of the specimen from the employee and shall certify proper completion of the collection.

26. The urine specimen and chain-of-custody form are now ready for shipment. If the specimen is not immediately prepared for shipment, the collection site person shall ensure that it is appropriately safeguarded during temporary storage.

27. Control of Specimen

a. While any part of the above chain-of-custody procedures is being performed, it is essential that the urine specimen and custody documents be under the control of the involved collection site person.

b. If the involved collection site person leaves the work station momentarily, the collection site person shall take the specimen and drug testing custody and control form with him/her or shall secure them. After the collection site person returns to the work station, the custody process will continue. If the collection site person is leaving for an extended period of time, he/she shall package the specimen for mailing before leaving the site.

c. The collection site person shall not leave the collection site in the interval between presentation of the specimen by the employee and securement of the sample with an identifying label bearing the employee's specimen identification number and seal initialed by the employee. If it becomes necessary for the collection site person to leave the site during this interval, the collection shall be nullified and at the election of the Company a new collection may be begun.

H. Collection Control. To the maximum extent possible, collection site personnel shall keep the individual's specimen bottle within sight both before and after the individual has urinated. After the specimen is collected, it shall be properly sealed and labeled.

SAFETY AND HEALTH PROGRAM

- I. **Transportation to Laboratory.** Collection site personnel shall arrange to ship the collected specimens to the drug testing laboratory. The specimens shall be placed in shipping containers designed to minimize the possibility of damage during shipment (e.g., specimen boxes and/or padded mailers); and those containers shall be securely sealed to eliminate the possibility of undetected tampering. On the tape sealing the container, the collection site person shall sign and enter the date specimens were sealed in the containers for shipment. The collection site person shall ensure that the chain-of-custody documentation is attached to each container sealed for shipment to the drug testing laboratory.
- J. **Failure to Cooperate.** If the employee refuses to cooperate with the collection process, the collection site person shall inform the designated Company representative and shall document the non-cooperation on the drug testing custody and control form.
- K. **Employee Requiring Medical Attention.** If the sample is being collected from an employee in need of medical attention as part of a post-accident test given in an emergency medical facility, necessary medical attention shall not be delayed in order to collect the specimen.
- L. **Use of Chain-of-Custody Forms.** A chain-of-custody form shall be used for maintaining control and accountability of each specimen from the point of collection to final disposition of the specimen. The date and purpose shall be documented on the form each time a specimen is handled or transferred and every individual in the chain shall be identified. Every effort shall be made to minimize the number of persons handling specimens.